

Smt. Sweta vs State Of U.P. And 3 Others on 23 October, 2019

Author: Rajiv Joshi

Bench: Rajiv Joshi

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 72

Case :- APPLICATION U/S 482 No. - 38251 of 2019

Applicant :- Smt. Sweta

Opposite Party :- State Of U.P. And 3 Others

Counsel for Applicant :- Arvind Agrawal

Counsel for Opposite Party :- G.A.

Hon'ble Rajiv Joshi,J.

Heard learned counsel for the applicant and learned A.G.A. for the State.

Present application under Section 482, Cr.P.C. has been filed for setting aside the order dated 8.5.2019 passed by Judicial Magistrate, Firozabad in Case No.248 of 2014, under Section 3, 14, 17, 18, 19, 21, 22, 23 of the Protection of Women from Domestic Violence Act, 2005, P.S. Tundla, District Firozabad, whereby the magistrate has rejected the application of the applicant for interim maintenance under Section 23 of Protection of Women from Domestic Violence Act, 2005 on the ground that the applicant is getting Rs.4,000/- as maintenance under Section 125, Cr.P.C. and Rs.7,500/- as interim maintenance under Section 24 of Hindu Marriage Act.

Statutory appeal under Section 29 of the Protection of Women from Domestic Violence Act, 2005 shall lie against the order impugned.

Present application stands dismissed on the ground of alternative remedy available to the applicant.

Appellate authority is directed to consider all the grounds, as raised by the applicant, in case she files the appeal.

Office is directed to return the certified copy of the impugned order to the learned counsel for the applicant within a week after retaining its photostat copy on record.

Order Date :- 23.10.2019 T. Sinha